LAND OPTION PURCHASE AGREEMENT

THIS LAND OPTION PURCHASE AGREEMENT (the "**Agreement**") is made by and between **[INVENERGY ENTITY]**, a Delaware limited liability company located at One South Wacker Drive, Suite 1500, Chicago, Illinois 60606 ("**Purchaser**") and **[LANDOWNER]** having an address of **[Landowner Address]** ("**Seller**"). Purchaser and Seller, and their respective successors and assigns are collectively called the "**Parties**" and each a "**Party**". This Agreement is deemed made, dated, and effective as of the latest date of signatures of the Parties (the "**Effective Date**"). For ease of reference, the Effective Date of this Agreement is _____, 202_; provided that, if there is any discrepancy between this date and the latest date of signatures of the Parties as reflected in the signature blocks hereto, the latter will be controlling.

IN CONSIDERATION of the payments and obligations hereinafter defined, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, Seller grants to Purchaser for the period (the "**Option Period**") beginning on the Effective Date and ending on the last day of the [thirty-sixth (36th)] month following the Effective Date (the "**Expiration Date**"), the exclusive and irrevocable right and option to purchase up to approximately [_____ (__)] acres, more or less (the "**Fee Property**") of that certain real property located in [_____] County (the "**County**"), State of Oklahoma consisting of approximately [__] acres, as more particularly described in Exhibit A attached hereto and incorporated herein (the "**Seller Property**"), including all appurtenances thereto and all subsurface, mineral, and water rights associated therewith, together with certain easement rights over, across and upon a portion of the Seller Property (such easement rights and property, as applicable, together with the Fee Property, the "**Property**") for the purposes set forth herein. Subject and pursuant to the provisions contained in Section 12.12 and Section 12.13, Purchaser shall pay to the Seller a monthly payment in the sum of [_____ **AND 00/100 DOLLARS ($_____)**] during the Option Period, with the first monthly payment being made within sixty (60) days from the Effective Date, and each subsequent monthly payment during the Option Period being paid on the same day of the month as the Effective Date for each subsequent month (collectively and inclusive of any increases thereto, if applicable, as contemplated in Section 3.1, the "**Monthly Option Fees**"). [In addition to the Monthly Option Fees, the Purchaser shall pay the Seller a one-time payment of _____ DOLLARS ($____) within sixty (60) days of the Effective Date (the "**Initial Option Fee**").] The Parties acknowledge that any monetary default by Purchaser for this Agreement shall not constitute a breach or default of this Agreement unless Seller provides written notice to Purchaser of said default and it is not cured by Purchaser within sixty (60) days of said notice.

Purchaser's option to purchase all or any part of the Property (the "**Option**") is subject to all of the terms, covenants and conditions set forth in this Agreement as follows:

1. Memorandum of Option. Seller and Purchaser agree to execute a Memorandum of Land Option Purchase Agreement in substantially the form attached as Exhibit B hereto (the "**Memorandum**"). Purchaser may record the Memorandum at Purchaser's expense.

2. Exercise Date. If Purchaser elects to exercise the Option, it must deliver to Seller its written notice of exercise in substantially the same form as set forth in Exhibit C; provided that, in the event the Fee Property is only a portion of the Seller Property, such notice will also (i) reasonably describe the portion of the Seller Property that constitutes the Fee Property to be purchased by Purchaser, at Purchaser's election, and (ii) reasonably describe such additional easements as may be specified by Purchaser consistent with Section 13 below, if applicable. The notice of exercise will be delivered in accordance with Section 12.2. The "**Exercise Date**" shall be the date when the notice of exercise is deemed duly given as set forth in Section 12.2. Purchaser shall have no obligation to pay any further Monthly Option Fees after the Exercise Date.

3. Option Period Extension.

3.1. Purchaser may at its sole discretion extend the Option Period as follows:

(a) At any time prior to the Expiration Date, Purchaser may extend the Option Period by an additional [twenty-four (24)] month period (the "**Second Option Period**") by increasing the amount of the Monthly Option Fees to _____ AND 00/100 DOLLARS ($_____). Upon remittance of the first increased Monthly Option Fee to Seller, the Expiration Date and the Option Period shall be deemed extended to the date being the last day of the [sixtieth (60th)] month following the Effective Date (the "**Second Option Period Expiration Date**"); and,

(b) At any time prior to the Second Period Option Expiration Date, Purchaser may extend the Option Period by an additional [twenty-four (24)] month period (the "**Third Option Period**") by increasing the amount of the Monthly Option Fees to _____ AND 00/100 DOLLARS ($_____). Upon remittance of the second increased Monthly Option Fee to Seller, the Expiration Date and the Option Period shall be deemed extended to the date being the last day of the [eighty-fourth (84th)] month following the Effective Date (the "**Third Option Period Expiration Date**").

3.2. For the avoidance of doubt, Purchaser may at its sole discretion pay one or more of the aforementioned fees in advance, and upon such payment the Option Period shall be extended as set forth in Section 3.1 above.

3.3. The Monthly Option Fees [and Initial Option Fee] are collectively referred to herein as the "**Option Fees**".

3.4. The Option Fees shall not be refundable, except as explicitly set forth herein. The Option Fees shall be applied as earnest money towards the Purchase Price.

4. Representations, Warranties and Covenants of Seller.

4.1. Seller represents and warrants to Purchaser that:

(a) Seller is a duly formed and validly existing [corporation/limited liability company] in good standing under the laws of the state and country of its organization. [OR] Seller is an individual of lawful age and full legal capacity.

(b) Seller has the full power, authority and legal right under all applicable laws [and its organizational documents] to grant the Option to Purchaser. The person who has executed this Agreement on behalf of Seller has the appropriate authority to bind Seller to the terms of this Agreement.

(c) The execution, delivery and performance of this Agreement by Seller will not result in any breach of or under any instrument, agreement, contract or other document to which Seller is a party or by which the Property is bound. No third-party consents are necessary for Seller to sell and convey the Property.

(d) Seller is the sole fee owner of the Property. There are no encumbrances against the Property other than financing which will be paid off with the proceeds that Seller receives from Purchaser at the Closing, and such other encumbrances as set forth as Exhibit D to this Agreement.

(e) There is legal access to the Property from dedicated public roads sufficient for normal development, construction, use and operation of the Property as a thermal power plant and related activities ("**Purchaser's Intended Use**"), and vehicular and pedestrian ingress to and egress from the Property.

(f) Seller knows of no facts not disclosed to Purchaser in writing which would prevent Purchaser from developing the Property for Purchaser's Intended Use.

(g) Seller shall not, without the prior written consent of Purchaser, enter into or consent to any lease, easement, covenant, purchase agreement, option, or other obligation affecting the Property or alteration to the Property.

(h) The Property is in compliance with all applicable federal, state and local environmental laws, ordinances, rules and regulations, relating to the handling, storage and disposal of hazardous and toxic wastes and substances, petroleum products and other regulated substances. The use of the Property is now and shall continue to be in compliance with all such environmental laws, ordinances, rules and regulations, including but not limited to the maintenance of all required permits and approvals. Seller has not used or stored hazardous wastes or substances, petroleum products and other regulated substances on the Property nor has Seller discharged or released any such substances upon the Property, including, but not limited to, underground injection of such substances, in violation of any federal, state or local environmental law, ordinance, rule or regulation. To the best of Seller's knowledge, no other party has engaged in any such use, storage, discharge or release. Seller hereby agrees to defend, indemnify and hold Purchaser harmless from any loss or damage incurred by or any claims against Purchaser arising from or related to Seller's, or its employees', contractors', or other agents' or representatives' breach of this Section 4.1(h), and notwithstanding Section 4.2, this indemnification shall survive Closing indefinitely.

(i) Except as disclosed to Purchaser in writing, Seller does not have knowledge of any condemnation, Surface Damages Act, environmental, zoning or other land-use regulation proceedings, either instituted or planned to be instituted, which would affect the use and operation of the Property or the value of the Property, nor has Seller received notice of any special assessment proceedings affecting the Property.

(j) There is no litigation pending or threatened, to which Seller or any of its affiliates is a party that, if adversely determined, would have a material adverse effect on Seller's ability to perform its obligations under this Agreement.

(k) As may be reasonably requested by Purchaser, Seller (on behalf of itself, its successors, assigns and affiliates) agrees that it will fully cooperate with Purchaser and assist Purchaser in connection with any discussions, negotiations, approvals, applications or other interactions required with or by any governmental or regulatory authorities, including, without limitation, any efforts to subdivide or rezone the Property, if required, or to obtain required permits and approvals for the Purchaser's Intended Use. Without limiting the foregoing, such cooperation and assistance may include (but not be limited to) providing written documentation, consents and/or approvals to such governmental or regulatory authorities, attending meetings (when practicable and requested by Purchaser) with such governmental or regulatory authorities, communicating with such governmental or regulatory authorities (as requested by Purchaser) and such other assistance as Purchaser may reasonably request from time to time.

(l) There are no leases, service contracts, maintenance contracts, management agreements, occupancy agreements or other agreements or understandings relating to the Property that will be binding on Purchaser or the Property on or after the Date of Closing (as defined below), except for the Permitted Exceptions (as defined below).

4.2. The representations and warranties set forth in this section are continuing and will be true and correct as of the Date of Closing with the same force and effect as if made at that time. All the representations and warranties will survive the Date of Closing for a period of one (1) year and will not be merged in the delivery and execution of the deed or other instruments of conveyance called for in this Agreement.

5. Representations and Warranties of Purchaser.

5.1. Purchaser represents and warrants to Seller that:

(a) Purchaser is duly organized and validly existing as a limited liability company under the laws of the state of its organization.

(b) Purchaser has the full power, authority and legal right under all applicable laws and its organizational documents to enter into this Agreement with Seller. The person who has executed this Agreement on behalf of Purchaser has the appropriate authority to bind Purchaser to the terms of this Agreement.

(c) The execution, delivery and performance of this Agreement by Purchaser will not result in any breach of or under any instrument, agreement, contract or other document to which Purchaser is a party or by which it or its properties are bound.

5.2. The representations and warranties set forth in this section are continuing and will be true and correct as of the Date of Closing with the same force and effect as if made at that time. All the representations and warranties will survive the Date of Closing for a period of one (1) year and will not be merged in the delivery and execution of the deed or other instruments of conveyance called for in this Agreement.

6. Option Period. During the Option Period:

6.1 The Purchaser, may obtain: (i) a survey of the Property prepared by a surveyor duly licensed in the State in which the Property is located (the "**Survey**"); and, (ii) an ALTA Commitment for Title Insurance (the "**Commitment**") for an owner's title insurance policy issued by a title insurance company selected by Purchaser (the "**Title Company**"). If the Commitment or Survey contain exceptions that that are unacceptable to Purchaser, then Purchaser shall provide a list of the objections in reasonable detail to Seller and Seller shall use commercially reasonable efforts to cause the objectionable requirements or title exceptions to be eliminated or cured within a thirty (30) day period and covenant, as a condition to close, to cure all other objections by Closing which cannot be eliminated or cured within such thirty (30) day period. Any title exceptions or survey matters not objected to by Purchaser shall be deemed "**Permitted Exceptions**". If Seller does not eliminate or cure the objections within such thirty (30) day period or otherwise elects not to take any action with respect to the objections, then Purchaser may thereafter terminate this Agreement by giving written notice to Seller and, in such event, Purchaser shall receive a refund of the Monthly Option Fees paid to Seller prior to such termination as its sole and exclusive damages and remedy, or in the alternative, if Purchaser thereafter extends the Option Period in accordance with the provisions of Section 3 of this Agreement or elects to proceed with the Closing if the Option has been exercised, then Purchaser shall

be deemed to have elected to take title to the Property subject to the objections specified in the Commitment and the objections shall be deemed to be part of any Permitted Exceptions hereunder.

6.2 Whether or not Purchaser has furnished to Seller any notice of objections to title or survey matters pursuant to Section 6.1 of this Agreement, Purchaser may, at or prior to Closing, notify Seller in writing of any objections to title first raised by the Title Company or the surveyor after the effective date of the Commitment or Survey, as applicable. With respect to any objections to title set forth in such notice, Seller shall have the same option to cure and Purchaser shall have the same option to accept title subject to such matters or to terminate this Agreement as set forth in Section 6.1 of this Agreement. If, prior to the exercise of the Option, there is any form of governmental restriction that would delay development of the Property by Purchaser for Purchaser's Intended Use or evidence of environmental contamination of the Property, Purchaser may terminate this Agreement by giving written notice to Seller and, in such event, Purchaser shall receive a refund of the Monthly Option Fees paid to Seller prior to such termination.

6.3 Approvals. The Parties acknowledge and agree that Purchaser's acquisition of the Property is in connection with the Purchaser's Intended Use. In connection with the Purchaser's Intended Use, Purchaser has obtained, and may in the future seek to obtain, additional zoning and other approvals from governmental or private bodies with jurisdiction over the Property or Purchaser's Intended Use (collectively, the "**Approvals**"). As set forth in more detail above in Section 4.1(k), Seller shall fully cooperate with Purchaser in its efforts to obtain the Approvals. Purchaser shall be solely responsible for all costs and expenses associated with obtaining the Approvals, and Seller shall not be obligated to incur any costs or expenses in connection therewith. Purchaser shall have the right to independently appear before the County and any other governmental entity in connection with any Approvals necessary for Purchaser's Intended Use. Seller shall promptly provide Purchaser with copies of any notices or other material communications it receives in connection with the Property, including, without limitation, notices with respect to zoning approvals, neighborhood concerns, public financing, notices from governmental agencies and notices relating to environmental matters.

6.4 Subdivision of Fee Property. The Purchaser may, at its sole cost and expense, and to the extent that Purchase deems appropriate, subdivide that portion of the Fee Property Purchaser expects to purchase into a separate legal parcel pursuant to a lot split or a platted subdivision, but shall have no obligation to do so. (the "**Approved Subdivision**"). As set forth in more detail above in Section 4.1(k), Seller shall fully cooperate with Purchaser in its efforts to obtain an Approved Subdivision. Upon approval of a Subdivision that creates that portion of the Fee Property Purchaser expects to purchase as a separate legal parcel, the Purchaser shall forward a copy to Seller, and the Parties shall, if necessary, execute an amendment to this Agreement providing the legal description for such subdivided Fee Property, as affected by the Subdivision. If Purchaser is unable to obtain an Approved Subdivision, Purchaser may terminate this Agreement by giving written notice to Seller.

6.5 Termination. During the Option Period, Purchaser shall have the right to terminate this Agreement at any time and without cause effective following thirty (30) days written notice to Seller from Purchaser (the "**Termination Notice**"). For the avoidance of doubt, and subject to the terms of Section 11.1 hereof, Seller shall be entitled to collect and retain all Option Fees due to Seller as of the effective date of the Termination Notice, prorated for any partial month of accrual.

7. Studies and Investigations.

7.1. Within twenty (20) days after the Effective Date, Seller shall deliver to Purchaser the following documents that are in Seller's possession or control:

(a) copies of area surveys, environmental assessment reports, engineering and environmental impact studies, and all other studies and reports relating to the Property that are in Seller's possession or control;

(b) copies of all notices from governmental entities affecting the Property, including copies of the last two (2) years property assessment and tax bills; and

(c) copies of all documents creating third party rights in the Property, including those recorded against the Property that will be Permitted Exceptions.

7.2. Purchaser and any person or persons selected by Purchaser may, upon notice to Seller, enter onto the Property for the purpose of conducting any studies and investigations of the Property that Purchaser deems appropriate. The studies and investigations, and any work on the Property related thereto, shall be conducted and completed in a good and workmanlike manner and may include without limitation, physically inspecting the Property (including drilling, auguring, digging or other intrusive testing of surface water, groundwater, soil, rock or other environmental media or surface and subsurface geologic features) and reviewing Seller's records concerning the Property, which records shall be made reasonably available to Purchaser. Purchaser will promptly pay the charges for any studies and investigations undertaken by Purchaser and agrees to defend, indemnify and hold Seller harmless from any loss or damage incurred by or any claims against Seller arising from or related to Purchaser's, or its employees', contractors', or other agents' or representatives' entry to the Property for the foregoing purposes or otherwise exercising Purchaser's rights under this Section 7. If any such studies or investigations, or any work related thereto, shall cause damage to the Property, Purchaser, at its sole cost and expense, shall repair any damage caused by the inspections and/or test performed hereunder.

7.3. The Seller hereby consents to any federal, state, municipal, governmental or quasi-governmental authority or body releasing information relating to the Property that the Purchaser may request, acting reasonably, and shall execute a written authorization and/or direction to that effect, if required by any such governmental authority.

8. Purchase Terms. In the event that Purchaser elects to purchase all or any portion of the Property, the following terms shall apply:

8.1. Purchase Price. The purchase price shall be _____ AND 00/100 DOLLARS ($____) per Net Acre (the "**Purchase Price**"). For purposes of this Agreement "**Net Acre**" or "**Net Acreage**" means the gross area of the Fee Property Purchaser has elected to purchase, including all internal easements and rights-of-way but excluding any and all perimeter easements and dedicated rights-of-way. Net Acreage shall be determined by a survey prepared by a surveyor licensed in the state in which the Property lies. The Purchase Price shall be payable as follows:

(a) The total Option Fees paid to Seller shall be applied as earnest money under this Agreement applicable to the Purchase Price.

(b) The remainder of the Purchase Price shall be paid to Seller at Closing, defined below.

8.2. Title To Be Delivered; "As Is, Where Is" Purchase. Seller agrees to convey to Purchaser marketable fee simple title to the Property by executing a warranty deed, subject only to the Permitted Exceptions.

8.3. Risk of Loss. Until Closing, Seller shall bear all risk of loss to the Property. Seller shall deliver the Property to Purchaser in substantially the same condition on the Date of Closing as it was on the Exercise Date, ordinary wear and tear and any damage caused by Purchaser excepted.

8.4. Condemnation. If, prior to the Date of Closing, all or a portion of the Property is the subject of an action in eminent domain or a proposed taking by a governmental authority, whether temporary or permanent, Purchaser, at its sole election, has the right to (i) terminate this Agreement at any time by giving written notice of such termination to Seller, and Purchaser shall be entitled to a refund of any of the Option Fees theretofore paid, or (ii) do one or more of the following: (a) proceed to Closing without any reduction in the Purchase Price, and Seller will assign all proceeds received by Seller in respect of the condemnation to Purchaser on the Date of Closing, and/or (b) contest such condemnation proceeding with Seller cooperating in accordance with Section 4.1(k).

8.5. Conditions to Closing. The Closing of the transaction contemplated by this Agreement is subject to the following conditions:

(a) The representations and warranties made by Seller and Purchaser in Section 4 and Section 5, respectively, must be correct as of the Date of Closing with the same force and effect as if the representations had been made at the Date of Closing.

(b) Seller and Purchaser must satisfactorily comply with the terms and conditions of this Agreement and execute and deliver the documents and the items referred to in Sections 8.6, 8.7 and 8.8 below.

(c) On the Date of Closing, title to the Property must be held by Seller free and clear of all encumbrances except the Permitted Exceptions.

(d) The Property must not have been adversely affected in any material way.

(e) Purchaser's updates of its studies and investigations of the Property between the Exercise Date and the Closing Date shall not have disclosed any matter that would have a material, adverse effect on Purchaser's ability to develop the Property for Purchaser's Intended Use.

If any of the foregoing conditions are not fulfilled due to no fault of Purchaser, then Purchaser may terminate this Agreement and shall be entitled to the remedies set forth in Section 11. In the event a condition is not met and Purchaser elects to complete the Closing, such condition shall be deemed to have been waived by Purchaser.

8.6. Closing. The consummation of the transaction for the Purchaser's acquisition of the Property from the Seller (the "**Closing**") will take place sixty (60) days following the Exercise Date, or on such earlier date as Seller and Purchaser may mutually agree (the "**Date of Closing**"). Both Parties will submit their respective Closing documents and funds to the Title Company as escrowee. Possession of the Property will be delivered to Purchaser on the Date of Closing and, subject to Seller's representations, warranties and covenants set forth herein, Closing shall constitute Purchaser's acceptance of the Property in its then existing "as is, where is" condition.

8.7. Seller's Obligations at Closing. At Closing, and subject to the terms, conditions, and provisions hereof and the performance by Purchaser of its obligations as set forth below, Seller must:

(a) Execute, acknowledge and deliver to Purchaser a general warranty deed to the Property in recordable form conveying to Purchaser marketable fee simple title to the Property and all rights appurtenant thereto, subject only to the Permitted Exceptions.

(b) Deliver to Purchaser an affidavit of Seller:

(i) identifying Seller as the owner of the Property;

(ii) stating that all work, labor, services and materials furnished to or in connection with the Property at the request of Seller have been fully paid for so that no mechanic's, materialmen's, or similar lien may be filed against the Property; and

(c) Provide for such other matters as to Seller's organization and authority to deliver the general warranty deed as the Title Company reasonably requires in order to issue its extended coverage owner's policy in accordance with the terms and conditions of the Commitment.

(d) Satisfy any existing mortgage, deed of trust or other indebtedness secured by a lien on the Property, from the proceeds of Closing and additional cash if necessary.

(e) Deliver to the Title Company any other documents required by this Agreement or as may be reasonably requested by the Title Company to consummate the transaction contemplated by this Agreement or to permit the Title Company to issue its owner's policy with all standard title exceptions deleted in accordance with the terms and conditions of the Commitment.

(f) Execute, acknowledge and deliver to Purchaser the Purchaser Additional Easement in recordable form, pursuant to Section 13.1 below, if applicable.

(g) Execute, acknowledge and deliver to Purchaser the Temporary Laydown Easement in recordable form, pursuant to Section 13.2 below, if applicable.

(h) Provide any information necessary to complete a Oklahoma Real Estate Transfer Return, if applicable.

8.8. Purchaser's Obligations at Closing. At Closing, and subject to the terms, conditions, and provisions hereof and the performance by Seller of its obligations as set forth above, Purchaser must:

(a) Deliver to Seller the balance of the Purchase Price then due and payable.

(b) Execute, acknowledge, and deliver Purchaser's counterparts to any applicable easement instrument, to the extent applicable.

(c) Execute and deliver to Seller all other documents required by this Agreement or as may be reasonably requested by the Title Company to consummate the transaction contemplated by this Agreement or to permit the Title Company to issue its owner's policy in accordance with the terms and conditions of the Commitment.

8.9. Closing Costs. The following costs and expenses shall be paid as follows in connection with the Closing:

(a) Seller's Closing Costs. Seller will pay the following costs in connection with the Closing:

(i) The cost of the Commitment.

(ii) The premium for a standard form of owner's title policy with

extended coverage.

(iii) Any closing fee charged by Title Company.

(iv) Any documentary stamp or transfer taxes required or due upon delivery or recording of the general warranty deed to Purchaser and other instruments of conveyance or grant.

(v) Seller's attorneys' fees.

(vi) Any indebtedness secured by a mortgage or deed of trust on the Property, past due taxes, federal or state tax liens or judgment liens against the Property.

(vii) The cost of recording the satisfaction of any existing mortgage or deed of trust and any other document necessary to make title marketable.

(b) Purchaser's Closing Costs. Purchaser will pay the following costs in connection with the Closing:

(i) The cost of the Survey.

(ii) Any filing fee to record the general warranty deed and other instruments of conveyance or grant.

(iii) Purchaser's attorneys' fees.

8.10. Prorations. The following prorations (including any expenses accrued but unpaid) will be made as of the Date of Closing by credits or debits to Purchaser against the Purchase Price:

(a) Real estate taxes and special assessments as provided below.

(b) Income and expenses relating to the Property, if any (Seller shall be deemed the Property owner on the Date of Closing for income and expenses proration purposes).

8.11 1031 Exchange. In the event Seller desires to complete a 1031 starker exchange as it relates to the Property (or a subdivision thereof, if applicable), Purchaser agrees to cooperate with effectuating such exchange; provided, however, Purchaser shall not be required to incur any additional expense or liability as a result of such cooperation, and Purchaser shall not be required to take title to any exchange property. Purchaser's cooperation shall not constitute any confirmation to Seller that Seller's actions under this Section comply with the requirements of 26 U.S.C. § 1031.

9. Taxes and Special Assessments. Seller will pay the real estate taxes and special assessments relating to the Property which are assessed with respect to the calendar years prior to the year in which the Closing takes place (including any deferred taxes payable as a result of the Closing, if any) and its pro rata share of the real estate taxes assessed with respect to the year of Closing, based on the ratio that the number of days from January 1st of the year of Closing through the Date of Closing bears to three hundred sixty-five (365) days. Seller will pay all existing, deferred, levied and pending special assessments against the Property due and payable as of the Date of Closing (including any special assessments certified to the current or future year's taxes). The balance of the real estate taxes assessed in respect of the year of Closing and thereafter that relate to the Fee Property will be paid by Purchaser.

10. Brokerage. The Seller represents and warrants to Purchaser that it has not engaged the services of any other broker in connection with the sale and purchase contemplated by this Agreement. Seller agrees to indemnify and hold Purchaser harmless from any claim made by the above-referenced broker and any other broker or sales agent or similar party who claims to have dealt with Seller for a commission due or alleged to be due on this transaction. Purchaser represents and warrants to Seller that it has not engaged the services of any broker in connection with the sale and purchase contemplated by this Agreement. Purchaser agrees to indemnify and hold Seller harmless from any claim made by any broker or sales agent or similar party who claims to have dealt with Purchaser for a commission due or alleged to be due on this transaction.

11. Default.

11.1. If Seller fails to perform its obligations hereunder, including complying with Seller's representations and warranties contained herein, for any reason except Purchaser's default or the failure of Purchaser to satisfy any conditions to Seller's obligations, Purchaser may:

(a) enforce the specific performance of this Agreement, which action must be commenced within one (1) year of the date of Seller's failure or default; or

(b) cancel and terminate this Agreement and be relieved of its obligations hereunder; or

(c) exercise its rights in equity and at law.

In the event Purchaser cancels and terminates this Agreement due to a material breach of Seller's representations and warranties contained herein or Seller's failure to perform its obligations under Section 8 hereof, Purchaser shall be entitled to the return of any Option Fees paid to Seller in addition to its remedies at law and in equity, including without limitation specific performance. No delay or omission in the exercise of any right or remedy accruing to Purchaser upon any breach by Seller shall impair the right or remedy or be construed as a waiver of any previous or subsequent breach. The waiver by Purchaser of any condition or the breach of any other term, covenant, or condition shall not constitute a waiver of any other condition or of any subsequent breach of the same or any other term, covenant or condition. All rights, powers, options or remedies afforded to Purchaser under this Agreement or by law or equity are cumulative and not alternative, and the exercise of one right, power, option, or remedy shall not bar any other rights, powers, options or remedies allowed under this Agreement or by applicable law.

11.2. If Purchaser fails to perform its obligations hereunder for any reason except Seller's default or the failure of Seller to satisfy any conditions to Purchaser's obligations, Seller shall be entitled to retain the Option Fees as liquidated damages as its sole and exclusive remedy and then cancel and terminate this Agreement in the manner provided by applicable law. The Parties acknowledge that in such event Seller's actual damages would be difficult or impossible to calculate and that such liquidated damages are an appropriate amount. No delay or omission in the exercise of any right or remedy accruing to Seller upon any breach by Purchaser shall impair the right or remedy or be construed as a waiver of any previous or subsequent breach. The waiver by Seller of any condition or the breach of any other term, covenant or condition shall not constitute a waiver of any other condition or of any subsequent breach of the same or any other term, covenant or condition.

12. Miscellaneous. The following general provisions govern this Agreement:

12.1. Governing Law. This Agreement is made and executed under and in all respects is governed and construed under the laws of the State of Oklahoma.

12.2. Notices. Any notice required to be given to Seller or Purchaser pursuant to this Agreement must be in writing and is deemed duly given: (i) on the date of personal delivery; (ii) one day following dispatch by Federal Express or equivalent; or, (iii) three (3) days following mailing by certified or registered mail, postage prepaid, return receipt requested, to the respective addresses of the Parties set out below:

Seller: [SELLER NAME & ADDRESS]	**Purchaser:** **[INVENERGY ENTITY]** c/o Invenergy LLC One S. Wacker Drive, Suite 1500 Chicago, Illinois 60606 Attn: General Counsel

12.3. Amendments. This Agreement may be amended only by a written instrument signed by Seller and Purchaser.

12.4. Assignment. Purchaser may assign its rights under this Agreement upon written notice to Seller, and the assignee shall assume all of Purchaser's obligations herein and Purchaser will be deemed released from any liability under this Agreement.

12.5. Successors and Assigns. This Agreement shall run with the land and shall inure to the benefit of and shall be binding upon the Parties, shall be binding upon their respective successors and permitted assigns and shall inure to the benefit of and be enforceable only by such successors and permitted assigns that have succeeded or which have received such assignment in the manner permitted by this Agreement.

12.6. Relationship of the Parties. Nothing in this Agreement shall be construed so as to make the Purchaser a partner, agent, joint-venturer, landlord or tenant of the Seller.

12.7. Entire Agreement. This Agreement sets forth the entire understanding of the Parties and may be amended, modified or terminated only by a document signed by the Parties.

12.8. Counterparts. For the convenience of the Parties, any number of counterparts of this Agreement may be executed and each such executed counterpart is deemed an original, but all the counterparts together constitute one and the same Agreement.

12.9. Confidentiality. The Seller agrees to keep confidential the existence, status, or terms and conditions of this Agreement, including, without limitation, the Purchase Price (collectively, the "**Confidential Information**"), and not to disclose or otherwise convey any portion of the Confidential Information to any person except to such Party's accountants and attorneys, or to such Seller's employees and representatives (collectively, the "**Representatives**") and local, state, and/or national officials who need to know such information for the purpose of assisting the Seller in connection with this Agreement, and in those instances only to the extent justifiable by that need (it being understood and agreed that such persons shall be informed by the Seller of the confidential nature of all such information and shall direct all such persons to treat such information confidentially).

12.10. Independent Consideration. In any case in which the Option Fees as provided herein are returned to Purchaser, then nevertheless One Hundred and No/100 Dollars ($100) thereof shall be paid to or retained by Seller and deducted from the amount due Purchaser, such One Hundred and No/100 Dollars ($100) belonging to Seller and shall in effect constitute option money, making this

Agreement binding even if any conditions or provisions herein are entirely within the discretion or control of Purchaser for any time period.

12.11. Time is of the Essence. Time shall be of the essence with respect to all terms and provisions of this Agreement.

12.12. IRS Form W-9. Notwithstanding anything in this Agreement to the contrary, Purchaser shall have no obligation to make any payment to Seller otherwise required under this Agreement unless and until Seller has returned to Purchaser a completed Internal Revenue Service Form W-9, such W-9 form to either (i) have been provided by Purchaser to Seller prior to execution of this Agreement or (ii) be provided by Purchaser to Seller promptly upon execution of this Agreement.

12.13. Payment Instructions. Unless otherwise elected and indicated by Seller below, all payments issued hereunder will be paid to Seller, and if Seller is comprised of more than one person or entity, such payments will be issued by a single check payable to all such persons or entities. If a dispute shall arise among the parties constituting Seller as to which parties are entitled to payment, or if multiple claims are made for payments, Purchaser shall have the right to interplead payments in a court action and such payments shall be deemed to be payments required by this Agreement. If Seller elects to have separate payments made as set forth in the table below, Seller and each person or entity holding record title to the Property hereby acknowledges and agrees that all payments are legally permitted to be made as set forth in the table below and that no other party shall have any right to such payments or to contest the payments and allocations as set forth below. Each person receiving payment pursuant to the table below hereunder agrees to fully indemnify, defend and hold harmless Purchaser against claims and liability by any third party in connection with its payments hereunder to the person/entities set forth herein. **Check one below**.

□ A single check should be issued payable to all persons/entities comprising Owner.

□ Separate checks should be issued to each Owner as set forth below:

Seller(s):	Name 1	Name 2	Name 3	Name 4
Payment Allocation:	[_____]%	[___]%	[___]%	[___]%

13. Additional Easements.

13.1. Purchaser Additional Easement. The Seller acknowledges that Purchaser may have to construct and/or use one or more of the following over those portions (if any) of the Seller Property that Purchaser does not otherwise elect to purchase in fee: (i) new natural gas pipelines, (ii) water supply pipelines, (iii) wastewater pipelines, (iv) overhead electrical transmission lines, (v) underground electrical lines, (vi) telephone and other communications lines, (vii) access roads, and (viii) related improvements necessary to install the same (collectively, the "**Purchaser Utilities and Access**"). Prior to Closing, the Parties will agree upon a form to be executed at Closing at no additional cost to Purchaser, that shall be an easement on, over, across and through the Seller Property for the construction and use of the Purchaser Utilities and Access (the "**Purchaser Additional Easement**"). The Purchaser Additional Easement shall be mutually agreed upon by both Parties working in good faith and shall include access for construction, maintenance and repair of the same. During the Option

Period, Purchaser shall provide a depiction of Purchaser's preferred placement of such Purchaser Utilities and Access, and Seller shall have the right to modify such location provided that Seller provides a commercially reasonable alternative location consistent with Purchaser's Utilities and Access. All other terms of the Purchaser Additional Easement shall be addressed in the form. If Purchaser complies with the terms set forth herein but are unable to agree upon the Purchaser Additional Easement form, Purchaser may terminate this Agreement in which case the Option Fees shall be refunded to Purchaser.

13.2. Purchaser Temporary Laydown Easement. The Seller acknowledges that Purchaser may need part of the Seller Property as a staging area for Purchaser's Intended Use during construction, including without limitation, the right of Purchaser to park construction vehicles, construction equipment, cranes, augers, tractors, earth-moving equipment and other heavy machinery, store construction materials, including steel, turbines and concrete, provide parking for construction workers, park trailers, and establish operations facilities and other temporary improvements of to store construction equipment and materials (the "**Laydown Area**"). Prior to Closing, the Parties will agree upon a form of temporary easement for Purchaser to use the Laydown Area for additional reasonable consideration to be negotiated between the Parties for the aforementioned purposes to be executed at Closing that shall be an easement on, over, across and through the Laydown Area (the "**Temporary Laydown Easement**"). The form of the Temporary Laydown Easement shall be mutually agreed upon by both Parties working in good faith and shall include access to the Laydown Area. During the Option Period, Purchaser shall provide a depiction of Purchaser's preferred placement of such Laydown Area, and Seller shall have the right to modify such location provided that Seller provides a commercially reasonable alternative location. All other terms of the Temporary Laydown Easement shall be addressed in the form. If Purchaser complies with the terms set forth herein but the Parties are unable to agree upon the Temporary Laydown Easement form, Purchaser may terminate this Agreement in which case the Option Fees shall be refunded to Purchaser.

[signature page to follow]

IN WITNESS WHEREOF, the Parties hereto have executed this Agreement as of the Effective Date set forth above.

SELLER:

[SELLER ENTITY]

By:_____
Name:_____
Title:_____

[OR]

_____
[SELLER NAME]

PURCHASER:

[INVENERGY ENTITY]

By: Invenergy LLC, its Manager

By:_____
Name:_____
Title:_____

EXHIBIT A
TO
LAND OPTION PURCHASE AGREEMENT

Legal Description of Property

[INSERT DESCRIPTION]

EXHIBIT B
TO
LAND OPTION PURCHASE AGREEMENT

Form of Memorandum of Land Option Purchase Agreement

[See attached]

Document Number

MEMORANDUM OF LAND OPTION PURCHASE AGREEMENT

Document Title

This instrument memorializes the fact that **[INVENERGY ENTITY]**, a Delaware limited liability company located at One South Wacker Drive, Suite 1500, Chicago, Illinois 60606 ("**Purchaser**"), and [LANDOWNER], a [single/married] person having an address of [ADDRESS] ("**Seller**"), have entered into that certain Land Option Purchase Agreement dated _____, 202_ (the "**Agreement**") concerning the real property in the Town of [___], County of [___], State of [___] described in Exhibit A attached hereto (the "**Property**").

Under the terms of the Agreement, which is in full force and effect, Purchaser has the exclusive option to purchase all or any part of the Property from Seller for the price specified therein. The Agreement expires no later than sixty (60) months from the Agreement date specified above, including rights to extend, although the closing of the purchase may occur within sixty (60) days after such date. If a deed from Seller to Purchaser has not been recorded by _____, 20__ then this Memorandum of Land Option Purchase Agreement shall be null and void and of no further force and effect. This Memorandum of Land Option Purchase Agreement may also be terminated of record by the recording of a deed or other instrument evidencing such termination signed by Seller and Purchaser and recorded in the [___] County land records.

[signatures on following page]

This instrument was drafted by [_____]

Recording Area

Name and Return Address:

[INVENERGY ENTITY]
c/o Invenergy LLC
Attn: Land Administration
1 South Wacker Drive, Suite 1500
Chicago, Illinois 60606

See Exhibit A

Parcel Identification Number (PIN)

SELLER:

[SELLER ENTITY]

By:_____
Name:_____
Title:_____

PURCHASER:

[INVENERGY ENTITY]

By: Invenergy LLC, its Manager

By:_____
Name:_____
Title:_____

ACKNOWLEDGMENT OF SELLER

STATE OF _____)
) SS.
COUNTY OF _____)

This instrument was acknowledged before me this ____ day of _____, 202_, by _____.

(S E A L)

Name: _____
Notary Public, State of _____
My Commission Expires: _____

ACKNOWLEDGMENT OF PURCHASER

STATE OF ILLINOIS)
) SS.
COUNTY OF COOK)

This instrument was acknowledged before me this ____ day of _____, 202_, by _____ as _____ of Invenergy LLC, Manager of [INVENERGY ENTITY].

(S E A L)

Name: _____
Notary Public, State of Illinois
My Commission Expires: _____

EXHIBIT A
TO
MEMORANDUM OF LAND OPTION PURCHASE AGREEMENT

Legal Description of Property

[INSERT DESCRIPTION]

EXHIBIT C
TO
LAND OPTION PURCHASE AGREEMENT

Notice of Exercise

Date: [_____]

Name/address____

Re: Notice of Exercise of Option to Purchase the Property described in the Land Option Purchase Agreement, dated _____ (the "**Agreement**")

Dear _____:

[INVENERGY ENTITY] ("Invenergy") hereby exercises its option to purchase the Property, including but not limited to ["all" OR "__ acres"] of the Fee Property described in the Agreement in accordance with the terms of the Agreement.

Enclosed herewith is a description of the Fee Property elected by Invenergy to be purchased [and Purchaser Additional Easement and/or Temporary Laydown Easement] to be purchased at Closing in accordance with the Agreement. Please execute and return to the undersigned the acknowledgment to this letter. Failure to return the acknowledgment will not affect the validity of this notice.

Regards,

[INVENERGY ENTITY]

By: Invenergy LLC, its Manager

_____
Name:_____
Title:_____

Acknowledged this ____ day of _____, 20__.

[SELLER]

By:_____
Name:_____
Title:_____

EXHIBIT D
TO
LAND OPTION PURCHASE AGREEMENT

Encumbrances Disclosed by Seller

[List]